

Akriti Jasrotia vs Chander Shekhar on 1 October, 2019

Author: Sindhu Sharma

Bench: Sindhu Sharma

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU

CTA No. 11/2017
IA No. 01/2017

Pronounced on: 01.10.2019

Akriti Jasrotia

...Petitioner(s)

Through: Ms. Aparajita Jamwal, Advocate

vs.

Chander Shekhar

...Respondent(s)

Through: Mr. Pawan Dev Singh, Advocate

CORAM: HON'BLE MRS. JUSTICE SINDHU SHARMA, JUDGE

JUDGMENT

1. The petitioner-wife has filed the present petition seeking transfer of the petition filed under Section 13 of the Hindu Marriage Act for Dissolution of Marriage by the respondent from the court of Principal District Judge, Kathua to Additional District Judge (Matrimonial Cases) Jammu.

2. It is submitted that the marriage between the parties was solemnized on 28.09.2014 and a male baby was born out of this wedlock on 20.08.2016. It appears that some differences arose between the parties, and respondent initiated proceedings under Section 13 of the Hindu Marriage Act in the court of Principal District Judge, Kathua on 28.02.2017. Petitioner has expressed her difficulty in contesting the petition at Kathua since she has a small baby who needs her care and attention, therefore, it is difficult for her to contest this petition at Kathua. Admittedly, the petitioner is presently residing at 76/A New Plots, Jammu and is pursuing her computer and typing courses in Jammu to improve her education. Thus, it is prayed that this case may be transferred from the court of Principal District Judge, Kathua to Additional District Judge (Matrimonial Cases) Jammu to enable her to contest the petition without difficulty.

3. Respondent has vehemently opposed the petition. It is stated by the respondent that this petition has been filed only for the purposes of harassing the respondent since her parental house is in Kathua and there is no cogent reasons for her to settle at Jammu and also duration of her computer course should be over by now therefore, her petition for transfer of the case should be dismissed.

4. Heard learned counsel for the parties.

5. The petition under Section 13 has been filed by the respondent- husband, it is convenience of the wife-petitioner, which has to be considered. Thus, the objection raised by the respondent that parental house of the petitioner being in Kathua, there would be no difficulty for her in contesting the petition at Kathua, does not hold any weight. She would have to travel with a small baby to the court on each and every date of hearing in the petition. The Hon'ble Apex Court in Sumita Singh v. Kumar Sanjay and another, (2001) 10 SCC 41 has held as under:

"3. It is the husband's suit against the wife. It is the wife's convenience that, therefore, must be looked at. The circumstances indicated above are sufficient to make the transfer petition absolute."

6. The Hon'ble Supreme Court while considering transfer of cases in Anupama Patil v Nataraj Veeranagouda Patil, 2018 (15) SCC 354 has held as under:

"As is evident from the cases referred to above, the principle of law with regard to transfer of cases especially regarding matrimonial disputes is quite settled, where consistent opinion is that it is always the convenience of wife which has to be given due weightage for ordering the transfer of proceedings at or near the place where the wife is residing"

7. Since the petitioner is residing at Jammu and the aforesaid petition has been filed in Kathua, it is convenience of the wife, which has to be seen as it would be difficult for her to travel with her child to contest the case at Kathua.

8. In view of the above, prayer of the petitioner is accepted and the petition is allowed. Petition, titled, Chander Shekhar vs. Akriti Jasrotia filed under section 13 of the Hindu Marriage Act for Dissolution of Marriage is pending in the court of the Principal District Judge, Kathua and is ordered to be transferred to the court of Additional District Judge (Matrimonial Cases), Jammu. Trial Court is directed to transmit the record of aforesaid file to the transferee court.

9. The parties to the litigation shall appear before the court of Additional District Judge (Matrimonial Cases) Jammu on 20.11.2019.

10. Disposed of alongwith connected IA.

(Sindhu Sharma) Judge Jammu 01.10.2019 Rakesh Whether the order is speaking: Yes/No Whether the order is reportable: Yes/No